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Case Number: 20STCV34867 Hearing Date: August 19, 2026 Dept: 408

1. Plaintiffs/Judgment

Creditors Allstate Insurance Company, Allstate Indemnity Company, and Allstate Northbrook Indemnity Company's Motion for Charging Order is GRANTED.

2. Plaintiffs/Judgment

Creditors Allstate Insurance Company, Allstate Indemnity Company, and Allstate Northbrook Indemnity Company's Motion to Compel Turnover of Nonexempt Property is GRANTED.

I.

BACKGROUND

On September 11, 2020, Plaintiffs

Allstate Insurance Company, Allstate Indemnity Company, and Allstate Northbrook Indemnity Company ("Plaintiffs"), as qui tam relators on behalf of the People of the State of California, filed a complaint against Defendants Simon Gamzaletova, Reymond Gamzaletova, Farideh Kohan, Mustafa Asghari, West Valley MRI, Inc., and SoCal Imaging ("Defendants") on causes of action for:

1.

Violation of the California Insurance Frauds Prevention Act; and

2.

Violation of the California Unfair Competition Law.

On April 15, 2021,
Plaintiffs filed an Amendment to the Complaint substituting SoCal Imaging for
its true name of SoCal Imaging, Inc.

On August 6, 2021, Plaintiffs filed a First Amended Complaint ("FAC").

On September 7, 2021, Defendants filed an answer to Plaintiffs' FAC.

On September 13, 2022, Plaintiffs filed Amendments to the Complaint substituting George Mednik, M.D., Ranon Udkoff, M.D., Sepehr Katiraie, M.D., Lynwood Medical Imaging, Inc., Udkoff Medical Imaging Corporation, and Mednik Medical Corporation as previously unidentified Defendants.

On January 2, 2023, pursuant to stipulation between Plaintiffs and Defendants Sepehr Katiraie and Lynwood Medical Imaging, Inc., the court issued an order regarding settlement and retention of jurisdiction pursuant to Code of Civil Procedure section 664.6.

On January 30, 2023, Defendant George Mednik, M.D. filed an answer to Plaintiffs' FAC.

On February 9, 2023, Defendant Mednik Medical Corporation filed an answer to Plaintiffs' FAC.

On February 17, 2023, the court granted Plaintiffs' Motion for Leave to File a Second Amended Complaint.

On February 21, 2023, Defendants Ranon Udkoff, M.D. and Udkoff Medical Imaging Corporation filed an answer to Plaintiffs' FAC.

On February 22, 2023, Defendants Ranon Udkoff, M.D. and Udkoff Medical Imaging Corporation filed an amended answer to Plaintiffs' FAC.

On February 22, 2023, Plaintiffs filed a Second Amended Complaint ("SAC").

On April 27, 2023, Defendants George Mednik, M.D. and Mednik Medical Corporation filed an answer to Plaintiffs' SAC.

On April 27, 2023, pursuant to Plaintiffs' request, default was entered

against Defendants Simon Gamzaletova, Reymond Gamzaletova, Farideh Kohan, and Mustafa Asghari.

On May 1, 2023,
Defendants Simon Gamzaletova, Reymond Gamzaletova, Farideh Kohan, Mustafa Asghari, West Valley MRI, Inc., and SoCal Imaging, Inc. filed an answer to Plaintiffs' SAC.

On November 30, 2023, pursuant to stipulation between Plaintiffs and Defendants George Mednik, M.D. and Mednik Medical Corporation,
the court issued an order regarding settlement and retention of jurisdiction pursuant to Code of Civil Procedure section 664.6.

On December 13, 2023, pursuant to stipulation between Plaintiffs and Defendants Ranon Udkoff, M.D. and Udkoff Medical Imaging Corporation,
the court issued an order regarding settlement and retention of jurisdiction pursuant to Code of Civil Procedure section 664.6.

On September 11,
2024, pursuant to stipulation between Plaintiffs and Defendants Simon Gamzaletova, Reymond Gamzaletova, Farideh Kohan, Mustafa Asghari, West Valley MRI, Inc., and SoCal Imaging, Inc., the court issued an order regarding settlement and retention of jurisdiction pursuant to Code of Civil Procedure section 664.6.

On October 22,
2024, pursuant to Plaintiffs' request, the court dismissed the entire action with prejudice.

On February 13,
2025, the court granted Plaintiffs' Motion to Enforce Settlement against Defendants Simon Gamzaletova, Reymond Gamzaletova, Farideh Kohan, Mustafa Ashgari, West Valley MRI, Inc., and SoCal Imaging, Inc.

On April 3, 2026,
Plaintiffs/Judgment Creditors filed this Motion for Charging Order against Defendants/Judgment Debtors Simon Gamzaletova and Farideh Kohan ("Judgment Debtors"). On May 20, 2026, Judgment Debtors filed an opposition. As of August

17, 2026, no reply has been filed.

On April 3, 2026,
Plaintiffs/Judgment Creditors filed this Motion to Compel Turnover of Nonexempt
Property against Defendant/Judgment Debtor Farideh Kohan. As of August 17,
2026, no opposition or other responsive pleading has been filed.

II.

MOTION FOR CHARGING
ORDER

A.

Legal Standard

"If

a money judgment is rendered against a partner or member but not against the
partnership or limited liability company, the judgment debtor's interest in the
partnership or limited liability company may be applied toward the satisfaction
of the judgment by an order charging the judgment debtor's interest pursuant to
Section 15907.03, 16504, or 17705.03 of the Corporations Code." (Code Civ.
Proc., § 708.310.)

"On application by a judgment creditor of a member or
transferee, a court may enter a charging order against the transferable
interest of the judgment debtor for the unsatisfied amount of the judgment. A
charging order constitutes a lien on a judgment debtor's transferable interest
and requires the limited liability company to pay over to the person to which
the charging order was issued any distribution that would otherwise be paid to
the judgment debtor." (Corp. Code, § 17705.03, subd. (a).) "This section
provides the exclusive remedy by which a person seeking to enforce a judgment
against a member or transferee may, in the capacity of judgment creditor,
satisfy the judgment from the judgment debtor's transferable interest." (Corp.
Code, § 17705.03, subd. (f).)

B.

Discussion

Plaintiffs/Judgment

Creditors move for an order charging the membership
interests of Defendants/Judgment

Debtors Simon Gamzaletova ("Gamzaletova") and Farideh Kohan ("Kohan") in their company, S & F 26 Investments, LLC ("S & F 26"), to satisfy the Judgment entered on February 12, 2025, in the amount of \$970,000.00, which remains outstanding. (Motion, at p. 3; Osborn Decl., ¶¶ 3-4, Exh. A.)

In opposition,

Judgment Debtors argue that their ownership interests is not subject to execution as a charging order is the exclusive remedy for a judgment creditor to execute on the "transferable interest" of a judgment debtor in a partnership and a transferable interest only applies to profit distribution and not income utilized by a partner to pay for partnership overhead. (Opp., at p. 2.) As such, Judgment Debtors contend that Judgment Creditors have not proved such distributions to warrant a charging order. (Ibid.)

A "transferable interest" is the right, associated with a person's capacity as a member, to receive distributions—a transfer of money or other property from an LLC to another person on account of a transferable interest—pursuant to the operating agreement, whether or not the person remains a member or continues to own any part of the right. (Rice v. Downs (2021) 73 Cal.App.5th 213, 226.)

Judgment Creditors provide that the California Secretary of State and most recent Statement of Information identifies Gamzaletova as a member and the Agent for Service of Process for S & F 26. (Osborn Decl., ¶¶ 6-7, Exh. C.) Gamzaletova also testified through deposition that he is an owner of S & F 26. (Id., ¶ 4, Exh. B.) Kohan also testified that she is an owner of S & F 26 during her debtor's examination. (Id., ¶¶ 8-9, Exhs. D-E.)

Based on the foregoing, the court finds that

Judgment Creditors have established Judgment Debtors' interest in S & F 26. (Code Civ. Proc., § 708.310; Rice, supra, 73 Cal.App.5th at 226.) The court charges Judgment Debtors' transferable membership interest in S & F 26 with the unpaid balance of the Judgment in the amount of \$970,000.00, plus interest. S & F 26 is directed to pay any distributions otherwise due or to become due to Judgment Debtors directly to Judgment Creditors, until the Judgment, including all accrued interest, is paid in full.

III.

MOTION TO COMPEL TURNOVER OF NONEXEMPT
PROPERTY

A.

Legal Standard

“[A]t the conclusion of a proceeding pursuant to this article, the court may order the judgment debtor’s interest in the property in the possession or under the control of the judgment debtor or the third person or a debt owed by the third person to the judgment debtor to be applied toward the satisfaction of the money judgment if the property is not exempt from enforcement of a money judgment.” (Code Civ. Proc., § 708.205, subd. (a).) The court may not order property or debt to be applied toward the satisfaction of a money judgment pursuant to this statute “[i]f a third person examined pursuant to Section 708.120 claims an interest in the property adverse to the judgment debtor or denies the debt and the court does not determine the matter as provided in subdivision (a) of Section 708.180” (Code Civ. Proc., § 708.205, subd. (b).)

Similarly, “[i]f a writ of execution is issued, the judgment creditor may apply to the court . . . for an order directing the judgment debtor to transfer to the levying officer either or both of the following: [¶] (1) Possession of the property sought to be levied upon if the property is sought to be levied upon by taking it into custody. [¶] (2) Possession of documentary evidence of title to property of or a debt owed to the judgment debtor that is sought to be levied upon.” (Code Civ. Proc., § 699.040, subd. (a).) The court may issue an order pursuant to Code of Civil Procedure section 699.040 “upon a showing of need for the order.” (Code Civ. Proc., § 699.040, subd. (b).)

B.

Discussion

Plaintiffs/Judgment Creditors move the court for an order requiring Defendant/Judgment Debtor Farideh Kohan (“Kohan”) to turn over two cashier checks totaling \$85,000.00 identified in her debtor’s examination to

satisfy the Judgment entered on February 12, 2025, in the amount of \$970,000.00, which remains outstanding. (Motion, at p. 3.) In support, Judgment Creditors provide that, during her December 18, 2025, debtor's examination, Kohan identified two cashier's checks she withdrew from her personal Chase savings and checking accounts, and which she keeps at her home. (Osborn Decl., ¶¶ 6-8, Exh. C.) On March 13, 2026, the court issued a Writ of Execution against Simon Gamzaletova, Reymond Gamzaletova, Farideh Kohan, Mustafa Asghari, West Valley MRI, Inc., and SoCal Imaging, Inc. (Id., ¶ 12.)

The court finds that

Judgment Creditors met their burden to show that the court may issue a turnover order against Kohan as Judgment Creditors demonstrated that a writ of execution has been issued, but that Judgment Creditors have not recovered the amounts due under the Judgment, such that Judgment Creditors show a "need for the [turnover] order" pursuant to Code of Civil Procedure section 699.040, and that a judgment debtor examination as to Kohan has taken place, such that Judgment Creditors demonstrated that the court may issue a turnover order pursuant to Code of Civil Procedure section 708.205. (Code Civ. Proc., §§ 699.040, 708.205.) The court also notes that the motion is unopposed. (Cal. Rules of Court, rule 8.54, subd. (c) ["A failure to oppose a motion may be deemed a consent to the granting of the motion."]; *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Accordingly, the motion is granted.

IV.

CONCLUSION

1.

Plaintiffs/Judgment

Creditors Allstate Insurance Company, Allstate Indemnity Company, and Allstate Northbrook Indemnity Company's Motion for Charging Order is GRANTED.

2.

Plaintiffs/Judgment

Creditors Allstate Insurance Company, Allstate Indemnity Company, and Allstate Northbrook Indemnity Company's Motion to Compel Turnover of Nonexempt Property is GRANTED.